

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: June 4, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Kiani vs. Masimo Corporation 2024-01426785	<u>Defendant Masimo Corporation’s Motions to Compel Further Responses to Request for Production of Documents:</u> Defendant Masimo Corporation’s Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED. Within 45 days, Plaintiff Joe E. Kiani shall serve further verified responses <u>without objection</u> to Defendant’s Request for Production of Documents, Set One, Request Nos. 14-15, 28-32, 35, 69, and 71. To the extent Kiani withholds any documents responsive to these requests on the basis of a privilege, Kiani shall provide a privilege log that complies with the requirements of Code Civ. Proc. §2031.240, subd. (c). It is unclear what relief Masimo is requesting with respect to Instruction C. Masimo does not identify any response to any RFP where claims of privilege have not been accompanied by a privilege log that complies with Code Civ. Proc. §2031.240, subd. (c). To the extent Kiani is withholding any document from production, Kiani must provide a privilege log that complies with Code Civ. Proc. §2031.240. Within 60 days, Plaintiff shall pay monetary sanctions to Defendant in the amount of \$10,000. Defendant has complied with the requirements of Code Civ. Proc. §2031.310. Defendant has established sufficient meet and confer efforts prior to filing this motion. (See ROA 379 (“Barron Decl.”) at ¶¶ 10-18; Exhs. H, J, K, L, and M.) Defendant’s separate statement complies with the requirements of Cal. Rules of Court, Rule 3.1345. Defendant’s motion is timely under Code Civ. Proc. §2031.310, subd. (c). (See Barron Decl. at ¶18, Exh. M.) Defendant has established good cause to compel further responses to the disputed requests by showing they are within the scope of discovery and Kiani has not produced any documents in response to any of the Requests at issue in this motion. Kiani has failed to substantiate his objections to the disputed Requests. <u>Overbreadth/Irrelevance:</u> Kiani has failed to show that the Requests at issue in this motion are overly broad or seek irrelevant information. (See Code Civ. Proc., § 2017.010 [broad scope of discovery]; see also <i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 591 [relevance for purposes of discovery].)

Burden: Kiani must substantiate a claim of undue burden with a factual showing. (See, *Williams v. Superior Court* (2017) 3 Cal.5th 531, 549-550.) No such showing has been made here.

Monetary Sanctions: Since Kiani's objections are meritless and he has not produced any documents in response to the Requests at Issue, the court finds that there is no substantial justification in opposing this motion and monetary sanctions are warranted.

Defendant Masimo Corporation's Motions to Compel Further Responses to Form Interrogatories:

Defendant Masimo Corporation's Motion to Compel Further Responses to Form Interrogatories, Set One is GRANTED in PART. As discussed above, Defendant has shown that the motion is timely, accompanied by an appropriate separate statement, and preceded by adequate meet and confer efforts. Accordingly, Plaintiff has the burden to justify the adequacy of his responses to the disputed interrogatories.

The Motion is GRANTED with respect to Interrogatory No. 8.4. Within 45 days, Plaintiff shall serve a supplemental verified response to Interrogatory No. 8.4 that states the total amount of Kiani's monthly income at the time of his termination from employment with Masimo.

The motion is DENIED with respect to Interrogatory Nos. 8.3, 8.5, 8.6, and 8.8. Kiani's responses fully answer the question posed by each of these interrogatories. Masimo attempts to construe these interrogatories to call for information they do not call for. If Masimo seeks to obtain discovery regarding Kiani's post-termination income and employment, Masimo can propound special interrogatories that seek the specific information it seeks or Masimo could elect to utilize the form interrogatories – employment law that include a section entitled "Loss of Income – Interrogatories to Employee".

Defendant Masimo Corporation's Motions to Compel Further Responses to Requests for Admission:

Defendant Masimo Corporation's Motion to Compel Further Responses to Requests for Admissions, Set One is CONTINUED to ***September 17, 2026 at 8:30 a.m.*** While Defendant has shown that the motion is timely and accompanied by an appropriate separate statement, the parties pre-motion meet and confer efforts

were solely centered around Kiani's relevance objections.

Kiani's objection based on relevance is OVERRULED. Each of these Requests is within the broad scope of discovery. (See Code Civ. Proc. §2017.010; see also *Lopez*, supra., 246 Cal.App.4th at 591.)

The Parties have not met and conferred regarding Kiani's objections concerning the ambiguity of each of the disputed RFAs. The Parties are ORDERED to meet and confer regarding these ambiguities so that the facts Masimo seeks Kiani to admit or deny are clearly set forth. All meet and confer efforts shall be in person, by telephone or by video conference regarding. Meet and confer efforts by written correspondence, email or text are not acceptable. No later than 15 days before the continued hearing date, the Parties shall file a joint statement that identifies any remaining disputes. None of Kiani's other objections justifies a refusal to provide a response that complies with Code Civ. Proc. §2033.220, subd. (b).

Moving Defendant shall provide notice.

Plaintiff Joe E. Kiani's Motion to Compel Further Responses to Request for Production of Documents:

Plaintiff Joe E. Kiani's Motion to Compel Further Responses to Request for Production of Documents is CONTINUED to ***September 17, 2026 at 8:30 a.m.*** in this department.

Plaintiff seeks an order compelling Defendant Masimo Corporation to produce all documents and/or a valid privilege log of documents withheld from production due to a claim of privilege responsive to Plaintiff's Request for Production Nos. 4, 21-23, 33-39, 47-51, and 65. The Court has already compelled Defendant to produce responses to each of these Requests in its 8/19/25 order on Plaintiff's prior motion to compel (ROA 281).

Code Civ. Proc. §2031.320 permits a party to move for an order compelling compliance with a request for production when the responding party "fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance."

Plaintiff contends that Defendant has failed to produce thousands of documents responsive to these requests. Defendant argues that the documents are not within its possession, custody, and/or control because the law firm of Willkie Farr & Gallagher LLP is

		the custodian of these documents. Plaintiff has sought to obtain the documents directly from Willkie. Plaintiff contends that there are thousands of non-privileged responsive documents in Wilkie's possession that have not been produced by either Defendant or Wilkie. Defendant has objected to Plaintiff's attempts to obtain the documents directly from Wilkie through a third-party subpoena. It is completely unclear to the court why thousands of non-privileged responsive documents are being withheld from production. This hearing is CONTINUED so that Plaintiff may also move to compel compliance with the third-party subpoena directed at Wilkie. The Court will set the hearing on the motion to compel compliance with the third-party subpoena for the same date as the continued hearing on this motion. <u>All counsel and third-party deponent shall all meet and confer in person, by telephone or by video conference regarding whether any potentially non-privileged documents regarding the Business Review and Risk Committee's investigation of Kiani have yet to be produced. Meet and confer efforts by written correspondence, email or text are not acceptable.</u> No later than 15 days before the continued hearing date, the Parties shall file a joint statement that identifies any remaining disputes regarding the adequacy of Masimo and/or Willkie's privilege log and/or the production of any yet-to-be produced documents. This joint statement is in addition to any reply briefing that may be filed on that date. Plaintiff Joe E. Kiani's Motion to Seal: Plaintiff Joe E. Kiani's Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Plaintiff shall provide notice of these rulings.
2	Brown vs. Irvine Public Schools Foundation 2025-01474076	Motion for Leave to File Amended Complaint Plaintiff Cheryl Brown's motion for leave to file a First Amended Complaint is granted. There is a strong policy favoring amendment of pleadings. "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." <i>City of Torrance v. Southern California Edison Co.</i> (2021) 61 Cal.App.5th 1071, 1091. This liberal policy applies

		particularly with respect to a party's initial complaint, and "it ordinarily constitutes an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable possibility that the defect can be cured by amendment." (<i>Ibid.</i>) The court is not persuaded by <i>Moorer v. Noble L.A. Events, Inc.</i>, (2019) 32 Cal.App.5th 736. The holding of <i>Moorer</i> does not restrict standing to bring Private Attorney General Act (PAGA) claims or the ability to amend complaints to add such claims. Rather, it affects only the distribution of any penalties ultimately recovered. Brown shall e-file a copy of the proposed pleading for filing within three days. Brown to give notice.
3	CLAIRMONT vs. FORD MOTOR COMPANY 2025-01510533	Motion to Dismiss <i>Continued. See minute order dated 6/3/26.</i>
4	Chao vs. Air Combat USA, Inc. 2022-01258475	Motion to Be Relieved as Counsel <i>Continued. See minute order dated 5/19/26.</i>
5	Khuu vs. Fairmont North Tustin 2025-01515709	Demurrer to Complaint Defendant Fairmont North Tustin's demurrer to the complaint of Aaden Khuu and Berry Phan is sustained in its entirety with ten days leave to amend. Fairmont to give notice.
6	Nava vs. Walt Disney Parks and Resorts U.S., Inc. 2026-01553496	Demurrer to Complaint <i>Off calendar. See notice filed 5/27/26.</i>
7	Resource Environmental vs. Griffin Structures 2025-01514398	Demurrer to Complaint <i>Off calendar. See noticed filed 5/21/26.</i>
8	Rume Medical Group, Inc vs. Lee M.D	Motion to Appear Pro Hac Vice (Two Motions) The applications by Kelly Kramer and Hiral D. Mehta to appear

	2025-01481522	pro hac vice are GRANTED. (Cal. Rules of Court, Rule 9.40.) <i>Case Management Conference set this date is vacated.</i> <i>Jury Trial set June 21, 2027 at 8:30 a.m. in Department C44.</i> <i>Trial estimate: 7 days</i> Moving parties shall give notice.
9	Truong vs. MKT, Inc. 2025-01495218	Demurrer to Amended Complaint Defendants Nguyen Thuy Linh and D&L Tran Corporation’s demurrer to plaintiff Manh Van Truong aka Mike Vungtau’s Second Amended Complaint [SAC] is SUSTAINED as to the 3rd cause of action for false light invasion of privacy and 5th cause of action for intentional and/or negligent infliction of emotional distress, with leave to amend, and otherwise OVERRULED. (Code Civ. Proc., § 430.10, subd. (e) [authorizing demurrer for failure to state facts sufficient to constitute a cause of action].) Plaintiff is granted 15 days’ leave to amend. Moving parties shall give notice. <u>1st cause of action: commercial misappropriation (Civ. Code, § 3344); 2nd cause of action: common law misappropriation.</u> These causes of action state sufficient facts. (Civ. Code, § 3344 [authorizing damages / civil penalties against “[a]ny person who knowingly uses another's name, voice, signature, photograph, or likeness, in any manner, on or in products, merchandise, or goods, or for purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods, or services, without that person's prior consent”]; <i>Kirby v. Sega of America, Inc.</i> (2006) 144 Cal.App.4th 47, 55 [common law misappropriation elements]; SAC, ¶¶ 3-12, 14 [misappropriation, lack of consent, proximately caused damages].) Contrary to moving parties’ contentions, the SAC sufficiently alleges agency and/or ratification, either of which is sufficient to support joint liability by these moving parties. (SAC, ¶¶ 3, 5 [agency], 6, 11 [ratification]; <i>Skopp v. Weaver</i> (1976) 16 Cal.3d 432, 437 [“numerous cases have held a pleading of agency an averment of ultimate fact”]; <i>Spahn v. Guild Industries Corp.</i> (1979) 94 Cal.App.3d 143, 156 [“an agent's liability for

	compensatory and punitive damages may be imputed to even an innocent principal,” and may be imputed where “the principal subsequently ratified the agent's actions”]; see also <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer so long as it states a valid cause of action under any theory]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 [“demurrer does not lie to a portion of a cause of action”].) The authorities cited by moving parties regarding agency were not pleading cases, and did not hold that a plaintiff must allege facts demonstrating a principal’s right to control the agent at the pleading stage, in order to overcome a demurrer. (See <i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 886 [in “determining the sufficiency of a pleading ... the existence of an agency relationship is the ‘essential fact,’ and where alleged must be accepted as true”].) Further, ratification is sufficiently alleged (SAC, ¶¶ 6, 11); whether moving parties in reality ratified conduct by other defendants is a question of fact for the trier of fact. (<i>C.R. v. Tenet Healthcare Corp.</i> (2009) 169 Cal.App.4th 1094, 1110 [whether ratification occurred “is generally a factual question”]; see also <i>Rakestraw v. Rodrigues</i> (1972) 8 Cal.3d 67, 73 [“A purported agent's act may be adopted expressly or it may be adopted by implication based on conduct of the purported principal from which an intention to consent to or adopt the act may be fairly inferred”].) <u>3rd cause of action: false light invasion of privacy.</u> This cause of action sufficiently alleges a false publication, i.e. the videos allegedly falsely implying plaintiff’s affiliation with and/or approval of defendants’ restaurants. (SAC, ¶¶ 3, 6-8; see also <i>Balla v. Hall</i> (2021) 59 Cal.App.5th 652, 688-690 [false implication of endorsement can give rise to false light claim].) Defendants’ alleged agency and/or ratification is also sufficiently alleged as discussed above. However, unlike the first two causes of action for misappropriation, which only require defendants’ alleged misuse of plaintiff’s name/likeness, this cause of action also requires that the publication be defamatory. (<i>Jackson v. Mayweather</i> (2017) 10 Cal.App.5th 1240, 1264 [false light elements, including allegations that subject publication “exposes a person to hatred, contempt, ridicule, or obloquy and assumes the audience will recognize it as such”].) This is not sufficiently alleged.
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“Where the words or other matters which are the subject of a defamation action are of ambiguous meaning, or innocent on their face and defamatory only in the light of extrinsic circumstances, the plaintiff must plead and prove that as used, the words had a particular meaning, or ‘innuendo,’ which makes them defamatory ... [w]here the language at issue is ambiguous, the plaintiff must also allege the extrinsic circumstances which show the third person reasonably understood it in its derogatory sense (the ‘inducement’).” (*Smith v. Maldonado* (1999) 72 Cal.App.4th 637, 645–646; internal citations omitted.) Here, there are no facts alleged to show how listeners would understate the allegedly false publications to be “derogatory” (*Smith v. Maldonado, supra* at 646), or expose plaintiff to “hatred, contempt, ridicule, or obloquy” (*Jackson v. Mayweather, supra* at 1264). “[A] harmful meaning must still be clear to constitute defamation per se.” (*Balla v. Hall, supra* at 690.)

4th cause of action: unfair business practices.

This cause of action states sufficient facts based on false misappropriation of plaintiff’s name/likeness. (SAC, ¶¶ 3-12, 14, 18; Bus. & Prof. Code, §§ 17200, 17203 [unfair business practices based on, *inter alia*, unlawful business acts or practices, or unfair, deceptive, untrue or misleading advertising, as well as plaintiff’s entitlement to restitution and/or injunctive relief]; see also Civ. Code, § 3344, subd. (a)(2) [authorizing injunctive relief for misappropriation]; *Schnall v. Hertz Corp.* (2000) 78 Cal.App.4th 1144, 1153 [“By proscribing ‘any unlawful’ business practice, section 17200 ‘borrows’ violations of other laws and treats them as unlawful practices that the unfair competition law makes independently actionable”]; *Ingels v. Westwood One Broadcasting* (2005) 129 Cal.App.4th 1050, 1060 [UCL claim requires allegations of valid underlying predicate].)

5th cause of action: intentional and/or negligent infliction of emotional distress.

This cause of action fails to state sufficient facts to show why posting allegedly false endorsement videos is “so extreme as to exceed all bounds of that usually tolerated in a civilized community,” as required for intentional infliction of emotional distress. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 [elements]; *Fowler v. Varian Associates, Inc.* (1987) 196 Cal.App.3d 34, 44 [“it is for the court to determine, in the first instance, whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery”].)

		As to negligent infliction of emotional distress, the SAC fails to allege any facts showing any duty to plaintiff on defendants' part. (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072 [negligent causing of emotional distress is not an independent tort, but is instead the tort of negligence]; <i>Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.</i> (1989) 48 Cal.3d 583, 588 ["[t]he traditional elements of duty, breach of duty, causation, and damages apply"]; <i>Wooden v. Raveling</i> (1998) 61 Cal.App.4th 1035, 1038 [the duty must be one "assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two"].) <i>Case Management Conference continued to November 13, 2026 at 8:30 a.m. in Department C44.</i> Clerk to give notice.
10	Wang vs. Liu 2023-01321234	Motion for Terminating Sanctions <i>Continued to CM02. See minute order dated 5/27/26.</i>
11	Yang vs. TBG Construction & Flooring Company, Inc. 2024-01385711	Motion to Set Aside/Vacate Judgment: No tentative.
12	Yu vs. JJC & CO. LLC 2026-01547713	Motion to Compel Arbitration Defendants JJC & CO. LLC, Jifeng Nan and Zhuofan Duan's Motion to Compel Arbitration is GRANTED. "[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine <i>whether the agreement exists</i> and, if any defense to its enforcement is raised, whether it is enforceable." (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4 th 1164, 1169; (Code Civ. Proc., § 1281.2.) "California contract law applies to determine whether the parties formed a valid agreement to arbitrate." (<i>Id.</i> at 1170.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show

	an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51.) Here, Defendants submit the Investment Agreement, attached to the Complaint as Exhibit A. The Investment Agreement contains a Dispute Resolution provision that states: “Any disputes arising under this Agreement shall first be resolved through mediation. If mediation fails, disputes shall be settled by binding arbitration in Los Angeles, California, in accordance with California state law. [followed by Chinese text].” (Exhibit A of Complaint, item 6.) Defendants have sufficiently shown the existence of an agreement to arbitrate. However, Plaintiff challenges the validity of such arbitration agreement. <i>Investment Agreement</i> Plaintiff contends he has limited English proficiency and relied on the Chinese-language portions of the Agreement when reviewing and signing the document. (Yu Decl., ¶ 5.) He understood the dispute-resolution language to generally mean that the parties would first try to mediate disputes and attempt to resolve them informally. (Yu Decl., ¶ 9.) Plaintiff offers the declaration of Samuel Shen Chong, a certified Mandarin Chinese court interpreter (license # 301138) who states the Chinese text used in the Investment Agreement means “evidentiary resolution” or “resolution via submission of evidence.” The Chinese text does not convey the concept of arbitration or the waiver of the right a jury trial. (Chong Decl., ¶ 7.) Plaintiff has met his burden of demonstrating a factual dispute as to the existence of an agreement to arbitrate. The burden now shifts back to Defendants to prove the existence of a valid agreement to arbitration. On reply, Defendants argue that Plaintiff cannot avoid arbitration based on his “limited understanding of English. Plaintiff filed this
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	action in English, and submitted declarations or affidavits in English. “Generally, a party may not avoid enforcement of an arbitration provision because the party has limited proficiency in the English language. If a party does not speak or understand English sufficiently to comprehend a contract in English, it is incumbent upon the party to have it read or explained to him or her.” (<i>Caballero v. Premier Care Simi Valley LLC</i> (2021) 69 Cal.App.5th 512, 518-519.) “An exception to the general rule applies when a party was fraudulently induced to sign the contract.” (<i>Id.</i> at 519.) This exception is inapplicable here because Plaintiff does not contend Defendants defrauded him or prevented him from learning the contract’s terms. He simply attests that he did not understand the Chinese version to mean he would waive his right to proceed in superior court. But he does not state he inquired about the meaning of the provision or was denied time to clarify the meaning of the provision prior to signing it. “[A person’s] decision to sign a document he could not read is not a basis for avoiding an arbitration agreement.” (<i>Id.</i> at 519.) Based on the foregoing, the court finds Defendants have demonstrated that the Investment Agreement contains a valid agreement to arbitrate. <i>Supplementary Agreement</i> Defendants seek to compel arbitration of all claims asserted by Plaintiff in the Complaint. However, Plaintiff argues that his claims are not solely based on the Investment Agreement, but also the Supplementary Agreement executed on or about May 26, 2025, concerning the pool-service business investment. The Supplementary Agreement does not contain an arbitration provision and does not incorporate the arbitration provision in the Investment Agreement. The Supplementary Agreement creates rights and obligations separate from Plaintiff’s initial equity investment. Plaintiff’s claims regarding ownership of pool assets, repayment of pool-business investment funds, and Defendants’ alleged misappropriation of pool-project revenues arise directly from that separate agreement. Plaintiff contends that Defendants, therefore, cannot compel arbitration of disputes arising from a contract that contains no agreement to arbitrate, especially the breach of fiduciary duty and fraud claims. On reply, Defendants argue that the Supplementary Agreement is merely an amendment to the Investment Agreement to provide
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		additional details concerning the preliminary planning and operational process of the investment project. Consistent with the language of the Investment Agreement, which states that “[a]ny amendments to this Agreement must be made in writing and signed by all parties,” the parties executed the Supplementary Agreement. The Supplementary Agreement did not displace the original terms of the Investment Agreement (including the arbitration clause) but provided further details regarding the investment project. The allegations in the Complaint appear to corroborate Defendants’ argument. Plaintiff alleges that “the parties entered into a written ‘Supplementary Agreement’ to expand the Company’s operations into the pool cleaning business,” thus suggesting the Supplementary Agreement was merely an amendment to the Investment Agreement which established the initial relationship of the parties. (Complaint, ¶ 7 [emphasis added].) In other words, the Supplementary Agreement was predicated upon the existence of the Investment Agreement and did not arise independently from that initial agreement. Plaintiff’s argument that its breach of fiduciary duty and fraud claims fall outside of the agreement to arbitration are not valid. “Even under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ tort claims must ‘have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (<i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) In this case, all of Plaintiff’s claims against Defendants were created by the Investment Agreement and the Supplementary Agreement. Accordingly, the motion to compel arbitration is GRANTED as Defendants have sufficiently demonstrated the existence of a valid agreement to arbitrate. The matter is stayed pending completion of the arbitration. <i>ADR Review Hearing set March 12, 2027 at 8:30 a.m. in Department C44.</i> Clerk to give notice.
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